

although acting in good faith, had had no power to issue the communication pursuant to Art. 94(3) EPC.

2.2. Communications under Rule 71(1) and (2) EPC

2.2.1 Invitation to correct deficiencies and to propose amendments (Rule 71(1) EPC)

The applicant's response to the search opinion required by R. 70a EPC (or filed voluntarily in response to search opinions not requiring a response) will be taken into account by the examining division when drafting the first communication (Guidelines C-II, 3.1 – March 2022 version).

According to Art. 94(3) EPC if the examination reveals that the application or the invention to which it relates does not meet the requirements of the EPC, the examining division shall invite the applicant, as often as necessary, to file his observations and, subject to Art. 123(1) EPC to amend the application.

Further, according to R. 71(1) EPC (former R. 51(2) EPC 1973) in any communication under Art. 94(3) EPC the examining division shall, where appropriate, invite the applicant to correct any deficiencies noted and to amend the description, claims and drawings within a period to be specified.

In T 301/10 the board stated that according to the established case law developed in relation to Art. 96(2) EPC 1973 and also applicable to Art. 94(3) EPC, the expression "**as often as necessary**" in this article indicates that the examining division has discretion which has to be exercised objectively in the light of the circumstances of the case (see T 162/82; OJ 1987, 533; T 300/89, OJ 1991, 480; T 726/04). See also T 1734/10.

Neither Art. 113(1) nor Art. 96(2) EPC 1973 (Art. 94(3) EPC) require that the applicant be given repeated opportunities to comment on the examining division's submissions if the main objections to the grant of a European patent remain the same (T 84/82, OJ 1983, 451; T 161/82, OJ 1984, 551; T 162/82, OJ 1987, 533, T 243/89, T 958/99). A further invitation to present comments following a substantiated communication in which deficiencies were recorded is only appropriate if it would appear likely that, in the light of the applicant's reply, the examination proceedings would terminate in the granting of a patent (see T 84/82, OJ 1983, 451; T 161/82, OJ 1984, 551; T 162/82, OJ 1987, 533; T 243/89; T 300/89, OJ 1991, 480; T 793/92; see also T 516/93, T 201/98).

2.2.2 Content of Rule 71(2) EPC communication

According to R. 71(2) EPC (R. 51(3) EPC 1973) any communication under Art. 94(3) EPC (Art. 96(2) EPC 1973), shall contain a reasoned statement covering, where appropriate, all the grounds against the grant of the European patent.

If no search opinion has been issued, the examiner's first communication under Art. 94(3) EPC will, as a general rule and by analogy with the search opinion, cover all objections to the application (Guidelines C-III, 4 – March 2022 version).

In T 937/09 the board observed that R. 71(2) EPC contained two requirements: applicants had to be informed, first, of each EPC requirement deemed not to be met and, second, for each such requirement, of the legal and factual reasons why it was deemed not to be met.

In J 32/95 (OJ 1999, 733) the Legal Board held that the objection raised by the appellant that the examining division had unduly dealt with the application in a piecemeal manner was unfounded. According to the Guidelines applicable at the time, the examiner's first letter should, as a general rule, cover all objections to the application. Pursuant to R. 51(3) EPC 1973 any communication shall, where appropriate, cover all the grounds against the grant of the European patent. Whether and to what extent this was to be done was a matter of procedural expediency. The Legal Board explained this meant that the examining division had to weigh the aspects of the case involved. In particular, the likelihood that the objection raised could be overcome, the kind of amendments which could be expected, and any objections which could yet remain thereafter had to be weighed against the amount of additional work involved for the examining division. In the case in hand, an objection concerning lack of novelty was raised in the first communication against all claims of the application. Such a far-reaching objection can normally only be overcome by substantial amendment of the claims. Therefore, claims amended in this way, if filed, have to be largely re-examined with respect to the prior art. In the view of the Legal Board, R. 51(3) EPC 1973 therefore did not require that an examining division should immediately raise the objection that the claims on file lacked inventive step in relation to other documents, if it was of the opinion that all the claims in the application were anticipated by one document. By contrast, in its second communication concerning the amended claims filed by the appellant, the examining division, although maintaining the non-novelty objection against new claim 1, also raised an objection of lack of inventive step. The Legal Board came to the conclusion that the appellant's submission that the examining division had breached R. 51(3) EPC 1973 by issuing several communications was unfounded. See also T 937/09.

In T 2311/10 the board held that whether and to what extent the examining division covered all the grounds against the grant of the European patent in a communication of was a question of procedural economy (see J 32/95) and a matter for the division's discretion.

In T 161/82 (OJ 1984, 551) the board noted that a distinction had to be made between the grounds on which a decision was based and the reasoned statement explaining in greater detail why the examining division was of the opinion that such grounds existed (see R. 51(3) EPC 1973).

In T 20/83 (OJ 1983, 419) the board noted that Art. 96(2) EPC 1973 prescribed that the examining division had to draw all obstacles to patentability to the applicant's attention. This conclusion related to the requirements for patentability as laid down in the EPC itself. The board in T 830/91 (OJ 1994, 728) noted however that the validity of a patent in various contracting states was not an immediate condition under the EPC.

In T 98/88 the board pointed out that R. 51(3) EPC 1973 did not make it compulsory for communications in accordance with Art. 96(2) EPC 1973 to set out all the grounds against

the grant of the patent. The board's view in this case was that deferral of the examination in respect of the requirements under Art. 52 EPC 1973 until a clear version of the claims had been received did not conflict with R. 51(3) EPC 1973. See also T 677/97.

2.3. Refusal after a single communication

2.3.1 Discretion of the examining division

In T 821/96 the board stated that, according to the established case law, it was left to the examining division's discretion to decide whether to issue a further invitation to present comments under Art. 96(2) EPC 1973.

In T 162/82 (OJ 1987, 533) the board held that the interests of orderly and economic examining procedures may preclude the sending of more than one communication where this would not appear to be likely to lead to a positive result. In T 84/82 (OJ 1983, 451) the board found that it was within the discretion of the examining division to interpret the submissions on behalf of the applicant as complete and final, and to assume, in consequence, that no useful purpose would be served by the provision of further opportunities for filing observations, and to reject the application in the second communication, when this was justified by the circumstances. See also T 201/98, T 79/91, T 1969/07, T 2351/16.

In T 201/98 the board noted, with reference to the established case law of the Boards of Appeal (T 84/82, OJ 1983, 451; T 300/89, OJ 1991, 480) that an examining division did not exceed its discretionary power by an immediate refusal, provided that the decision complied with Art. 113(1) EPC, i.e. was based on grounds on which the appellant had had an opportunity to present comments. In T 162/82 (OJ 1987, 551) the board held that neither Art. 113(1) nor Art. 96(2) EPC required that the applicant be given a repeated opportunity to comment on the argumentation of the examining division so long as the decisive objection against the grant of a patent remained the same (see also T 300/89, T 95/04). The board in T 63/93 held that this was particularly the case when the claimed subject-matter had not been substantially modified (see also T 304/91).

In T 300/89 (OJ 1991, 480) the board noted that the **burden lay with an applicant to propose amendments** which overcame the objections raised by the examining division in his observations in reply to the first communication in which such objections were raised.

In T 640/91 (OJ 1994, 918) the board stated that the requirement in Art. 96(2) EPC 1973 that the examining division must invite the applicant to file his observations "as often as necessary" implicitly recognised that in certain circumstances the examining division would be legally obliged to invite further observations from the applicant before issuing a decision, for example before issuing a decision based on grounds or evidence on which the Applicant had not previously had an opportunity to present his comments (Art. 113 EPC). Having regard to Art. 113(1) EPC, there was a "necessary" legal obligation for an examining division to invite further observations from an applicant before issuing a decision adversely affecting him in which the immediate issue of the decision was justified on the ground that he had shown lack of good faith in his previous observations. The board

pointed out, moreover, that it was in principle not the function of an examining division to assess either the degree of collaboration from applicants or their good faith when deciding whether or not to invite further observations in the exercise of its discretion under Art. 96(2) EPC 1973. The exercise of this discretion depended primarily upon whether or not there was a reasonable prospect that such an invitation could lead to the grant of a patent. See also T. 855/90.

In T. 677/97 the board noted that R. 51(3) EPC 1973, by virtue of the phrase "where appropriate", allowed the examining division discretion to issue a first communication which was less than comprehensive. This interpretation of the EPC had also been approved in T. 98/88. The board held it was incumbent on the examining division under Art. 96(2) EPC 1973 to send a second communication containing a reasoned statement as to why the objection under Art. 56 EPC was maintained. In making this finding the board stated it was not departing from the established case law of the EPO boards of appeal which recognised that it was within the discretion of an examining division to issue a refusal decision after a single communication. In the circumstances of the case in hand, however, an immediate refusal was not a reasonable exercise of this discretion. The limits on the examining division's discretion in this respect were explained in T. 951/92 (OJ 1996, 53), in which decision the board stated that if a communication under R. 51(3) EPC 1973 and pursuant to Art. 96(2) EPC 1973 did not set out the essential legal and factual reasoning which would lead to a finding that a requirement of the EPC had not been met, then a decision based upon such a finding could not be issued without contravening Art. 113(1) EPC 1973, unless and until a communication had been issued which contained such essential reasoning. If a decision was issued in the absence of a communication containing such essential reasoning, Art. 96(2) EPC 1973 was also contravened, since in order to avoid contravening Art. 113(1) EPC 1973 it was "necessary" to issue a further communication (following T. 640/91, OJ 1994, 918).

In T. 449/03 the board stated that the appellant's allegation that the applicant was generally entitled to receive at least two communications in the examination proceedings before a negative decision on patentability was unfounded (see T. 84/82, OJ 1983, 451). However, where features are added to a claim in response to an official communication, it is only in exceptional cases that a further communication may be dispensed with (cf. T. 161/82, OJ 1984, 551).

In T. 5/81 (OJ 1982, 249) the board noted that an appeal might relate only to a decision subject to appeal within the meaning of Art. 106(1) EPC 1973 and not to preparatory measures referred to in Art. 96(2) EPC 1973 and R. 51(3) EPC 1973. A failure to comply with these requirements could not be taken into consideration unless it had some influence on the decision to refuse, as in the case of a breach of Art. 113(1) EPC 1973 (see also T. 808/90). The appellant's objection was unfounded, not only for this reason, but also because the examiner commented on the content of the claim in question by drawing attention to the possibility of formulating an independent claim based thereon. Since the appellant did not make use of that possibility, the examining division was not obliged to discuss it when refusing the application. The allusion thereto in the reasons for the decision did not form part of the ratio decidendi and was intended solely to demonstrate that the examining division was aware of the fact that the application might contain patentable

subject-matter. A refusal under these circumstances was not open to challenge. See also T 228/89, T 347/04, R 14/10.

2.3.2 Bona fide attempt to deal with the examining division's objections

In T 802/97 the board stated that when applying Art. 96(2) EPC 1973 to determine whether an applicant should be given a further opportunity to present comments or amendments before refusing an application after a single official communication, the established practice of the examining divisions as set out in particular in the Guidelines applicable at the time was to warn the applicant who had made a bona fide attempt to deal with the examining division's objections, e.g. by a telephone conversation or by a short further written action, that the application would be refused unless he could produce further more convincing arguments or make appropriate amendments within a specified time limit. It held that only when the applicant had not made any real effort to deal with the objections raised in the first communication, should the examining division consider immediate refusal of the application, this however being an exceptional case. See also T 89/93, T 201/98, T 587/02.

In T 201/98 the board accepted that in the case in hand the appellant's response to the single communication was a bona fide attempt to deal with the examining division's objections. However according to the established case law of the boards of appeal an examining division did not exceed its discretionary power by immediately refusing an application, provided that the decision complied with Art. 113(1) EPC 1973, i.e. was based on grounds on which the appellant had had an opportunity to present comments, see T 84/82 (OJ 1983, 451) and T 300/89 (OJ 1991, 480). In the case in hand, the board considered that the decision of the examining division was based on grounds on which the appellant had had an opportunity to present comments in accordance with Art. 113(1) EPC 1973.

In T 1002/03 the board found that in the circumstances of the case **no special warning** (that the following stage might be the refusal of the application) in the official communication was necessary. The reasons given in the decision under appeal were essentially the same as those presented in the IPER on which the appellant had had an opportunity to present comments. The appellant's right to be heard (Art. 113(1) EPC) had not been violated and the examining division had not exercised its discretion in an unreasonable way by refusing the application after a single official communication (see also T 1969/07).

In T 1388/10 the appellant argued that it had indeed made a "bona fide" attempt to overcome the examining division's objections and that its application should therefore not have been refused without a further "warning". The board noted that the Guidelines were not the law – unlike the EPC and its Implementing Regulations. It pointed out that when reviewing examining divisions' decisions it did not assess whether the division had complied with the Guidelines. Rather, it considered whether the division had exercised its discretion within the limits set by the EPC and its Implementing Regulations. In the case in hand, the board held that the examining division's decision not to issue a second